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Legal Metrology

1.(i). Legal Metrology is the application of legal requirements to measurements and measuring instruments.

(ii). The objective of Legal Metrology is to ensure public guarantee from the point of view of security and accuracy of the weightments and measurements.

(iii). Constitutional provisions related with Weights and Measures are:

(a) Establishment of Standards of Weights and Measures – Under UNION LIST – Entry 50: To frame the Act and Rules, Specification of Standards and International Relations, Training in Legal Metrology etc.

(b) Weights and Measures except establishment of Standards – under CONCURRENT LIST – Entry 33 A: Enforcement of Legal Metrology.

2. Legislation:

2.1 The Legal Metrology Act, 2009:

The Act received the assent of the President on the 13th January, 2010 and came into force with effect from 1st April, 2011. Department of Consumer Affairs is the nodal agency for the implementation of the Act. Specific Provisions under the Act are:

S.No.	Points
1	The Legal Metrology Act, 2009 is a single Act covering the provisions of the Standards of Weights and Measures Act, 1976 and Standards of Weights and Measures (Enforcement) Act, 1985
2	The Act is having only 57 Sections
3	No registration of users of weights and measures is required
4	Registration for export of weights and measures is not required
5	The penalty provisions of different offences have been increased
6	Standardization of units of weights and measures based on metric system
7	Declarations on pre-packaged commodities
8	Approval of model of weight or measure before manufacturing/import
9	Prohibition on manufacture, repair or sale of weight or measure without license
10	Verification and stamping of weight or measure
11	Only one nominated Director of the company will be responsible for the offences done by the company under the Legal Metrology Act
12	Provision of Government Approved Test Centre has been introduced.

3. The following seven rules have been framed under the Act:

3.1. The Legal Metrology (General) Rules, 2011:

Specifications for weighing and measuring instruments have been prescribed in the Legal Metrology (General) Rules, 2011 which include around 40 types of weighing and measuring instruments such as electronic weighing instruments, weighbridges, petrol pumps, water meter, sphygmomanometer, clinical thermometer etc. These weighing and measuring instruments are used by industries, traders, hospitals and various government and non-government organizations for the weighing and measurement purpose and the end results of the weighing and measuring is directly for the benefit of the common people. These weighing and measuring instruments are periodically

3. The following seven rules have been framed under the Act:

verified by the State Government officers using the Standard Weights and Measures and the procedure prescribed in the Rules.

3.2. The Legal Metrology (Packaged Commodities) Rules, 2011:

'Pre-packaged commodity' is defined under the Act as, 'a commodity which without the purchaser being present is placed in a package of whatever nature, whether sealed or not, so that the product contained therein has a pre-determined quantity'.

As per the Legal Metrology (Packaged Commodities) Rules, 2011 certain mandatory declarations have to be made on every package, which are:

- (i) Name and address of the manufacturer/ packer/ importer;
- (ii) Country of origin for imported products;
- (iii) Common or generic name of the commodity contained in the package;
- (iv) Net quantity, in terms of standard unit of weight or measure or in number;
- (v) Month and year of manufacture;
- (vi) Best before/ use by date, month and year for the commodities which may become unfit for human consumption.
- (vii) Retail sale price in the form of Maximum Retail Price (MRP) Rs..... Inclusive of all taxes;
- (viii) Consumer care details
- (ix) Where the sizes of the commodity contained in the package are relevant, the dimensions of the commodity contained in the package and if the dimensions of the different pieces are different, the dimensions of each such different piece shall be mentioned.
- (x) Unit sale price

3.3. The Legal Metrology (Approval of Models) Rules, 2011:

Manufacturers/ Importers of Weighing and Measuring equipment, which are prescribed Under the Legal Metrology Act, 2009 and rules made there under, are required to take approval of the Government of India before manufacturing/ import.

Some of the equipment like cast iron, brass, bullion, or carat weight or any beam scale, length measures (not being measuring tapes) which are ordinarily used in retail trade for measuring textiles or timber, capacity measures, not exceeding twenty litre in capacity are not required to obtain Model approval.

3.4. The Legal Metrology (National Standards) Rules, 2011:

- (i) Under the Rules there is provision of National Prototypes/various standards are kept at National Physical Laboratory.
- (ii) Reference Standards of weights and measures are kept at Regional Reference Standard Laboratory at Ahmedabad, Bangalore, Faridabad, Bhubaneswar and Guwahati.

3. The following seven rules have been framed under the Act:

- (iii) Reference Standards are used for the verification of Secondary Standards Weights & Measures which are part of state government laboratories.
- (iv) The Working Standard Weights & Measures are available at the district level which are used for the verification of any Weight & Measures used by traders and manufacturers for the transaction and protection purposes. The Working Standard Weights & Measures are verified by the Secondary Standard Weights & Measures.

3.5. The Legal Metrology (Numeration) Rules, 2011:

Under these rules the provision is made for making Numeration and the Manner in which numbers shall be written.

3.6. Indian Institute of Legal Metrology Rules, 2011:

Indian Institute of Legal Metrology, Ranchi is the training institute for providing training in the field of Legal Metrology to the Legal Metrology Officers of States/ UTs/ Union of India, under the administrative control of this Department. Under these rules provisions regarding Courses to be imparted at the Institute, Obligatory functions of the Institute, Qualification of persons to be eligible for admission in the Institute are prescribed. Indian Institute of Legal Metrology, Ranchi is the training institute for providing training in the field of Legal Metrology to the Legal Metrology Officers of States/ UTs/ Union of India, under the administrative control of this Department. Under these rules provisions regarding Courses to be imparted at the Institute, Obligatory functions of the Institute, Qualification of persons to be eligible for admission in the Institute are prescribed.

3.7. The Legal Metrology (Government Approved test Centre) Rules, 2013:

The Government Approved Test Centre (GATC) Rules are framed for approval of GATCs established by the private persons for the verification of some of the weights and measures, in addition to verification done by the State Government Officers. The weights and measures prescribed under these rules for the verification by a GATC are:- (i) Water meter, (ii) Sphygmomanometer, (iii) Clinical Thermometer, (iv) Automatic Rail Weighbridges, (v) Tape Measures, (vi) Non-automatic weighing instrument of Accuracy Class-III/ Class-III (upto 150kg), (vii) Load cell, (viii) Beam Scale, (ix) Counter Machine and (x) Weights of all Categories.

3.8 The State Governments have also framed their State Legal Metrology (Enforcement) Rules for the implementation of the Act, 2009.

4. Functions of the Legal Metrology:

Precision & accuracy in measurement plays very vital role in day to day life. A transparent and efficient legal metrology system inspires confidence in trade, industry and consumer and brings harmonious environment for conducting business by way of (i) contribution to the economy of the country by increasing the revenue in various sectors.

(ii) playing important role in reducing the revenue losses in the coal, mines, industries, petroleum, railways.

(iii) reduction of the loss and wastage in the infrastructure sector.

The work performed by the Legal Metrology therefore, is vital to the public interest. Director, Legal Metrology is a statutory authority with powers and responsibilities prescribed under the Legal Metrology Act, 2009 relating to inter-state trade and commerce of weights and measures including pre-packaged commodities. Director, Legal Metrology is also responsible for establishing standards of Legal Metrology and maintaining traceability of Standards relating to Legal Metrology. The primary responsibilities of the Director are in the nature of Regulation, Enforcement and Research, Regulation and Enforcement functions to undertake technical field inspections, searches, seizures, registration of offices and launching prosecutions.

The enforcement of Legal Metrology Laws is done by the State Governments by the Controller of Legal Metrology and other Legal Metrology Officers as per the provisions of Act.

5. Attached:

5.1. Regional Reference Standard Laboratories (RRSLs) are set up to meet the Legal Metrology requirements of the State Governments, Industries and Consumers in the country. There are six RRSLs, situated at Ahmedabad, Bangalore, Bhubaneswar, Faridabad, Guwahati and Varanasi. The Regional Reference Standards Laboratories serve as a link between the National Physical Laboratory and the States Weights & Measure laboratories to ensure the correct weighment and measurement in trade and transaction. One new RRSL is being established at Nagpur, Maharashtra. The Legal Metrology Division of the Department have already been certified by ISO/IEC/17065:2012. For dissemination of Indian Standard Time (IST), Time dissemination Laboratories are being set up at Five RRSLs situated at Ahmedabad, Bangalore, Bhubaneswar, Faridabad and Guwahati in collaboration with NPL and ISRO.

These laboratories are responsible for verification of secondary standards of State Government, testing of models of weights and measures, Calibration of sophisticated weighing and measuring instruments and organizing of consumer awareness program etc.

5.2. Indian Institute of Legal Metrology, Ranchi is the National Centre for imparting professional training to the Legal Metrology officers. It also provides training to the foreign participants of the neighboring /developing countries. This is a residential training institute and having an approximate area of 17 acres. It has all the facilities for

5. Attached:

organizing training and seminars. The institute offers the Basic Training Course in the field of Legal Metrology to the Legal Metrology Officers which is compulsory. The said course imparts knowledge pertaining to the Legal Metrology Acts and Rules and their implementation in the field. Apart from this it organises various refresher courses and seminars on Legal Metrology on a regular basis. In a calendar year approximately 200 officials of Legal Metrology of different States and UTs are being trained by IILM. There are good laboratories, hostel facilities and a hostel cum guest house in the premises.

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External link



उपभोक्ता मामले विभाग
DEPARTMENT OF
CONSUMER AFFAIRS

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Contact Information

National Consumer Helpline
(Department of Consumer Affairs, Govt. of India)
Toll Free No. **1800-11-4000 OR 1915**
Register your grievance through NCH APP

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